Cinnaminson Township
1621 Riverton Road
Cinnaminson, NJ 08077
856-829-6000 ext. 2396

TOWNSHIP OF CINNAMINSON
NOTICE OF ENFORCEMENT AND ABATEMENT

April 7, 2025

Property Address: **1100 Cinnaminson Avenue; Block 1608 – Lot 1 : Zone R-2**
Owner of Record: **Morgan Cemetery**
Address: **1640 Haddon Avenue; Camden, NJ 08103**

Requirements of Conformity with Ordinance Provisions

Pursuant to Section § 525-6 of the Cinnaminson Township Municipal Code (CODE), "On and after the effective date of this chapter, no person, unless authorized by statute or by order of the Board of Adjustment, **shall occupy or use any land** *(emphasis added)* or construct or locate any building within the bounds of said Township of Cinnaminson except in conformity with the restrictions and regulations established by this chapter for the district in which such land or building is located and in conformity with all other pertinent terms and provisions of this chapter."

Zoning Officer's Authority to Conduct Investigations

Pursuant to Section § 10-46 (E) of the CODE, "The Zoning Officer shall be appointed by the Township Committee in accordance with applicable Department of Personnel regulations. Under the direction of the Director of Community and Economic Development, the Zoning Officer shall:

(E) Institute and conduct lawful proceedings to prevent threatened violations of the Zoning Ordinance, [1] and/or to correct conditions resulting from the violation thereof; and to prosecute persons who shall have violated or shall be engaged in violating any of the terms or provisions of the Zoning Code."

Recitations of Facts:

Pursuant to 525-20(B). cemeteries are permitted as a conditional use subject to approval and if applicable constraints as set forth by the Cinnaminson Township Planning Boad. Following receipt of complaints from neighboring residents, the undersigned have determined that the owners and/or managers of Morgans Cemetery have recently elected, without the required approval from the Planning Board, to utilize perimeter areas of the tract as areas for gravesites and burial places without the required approvals and without consideration for various setbacks distances from neighboring residents.

Notice of Required Abatement/Penalties

You are hereby directed to immediately abate the violation(s) described herein and also that based upon continuous individual violations, and an opportunity to address/cure, that you are currently subject to the penalty provisions as described below.

Violation of § 525-137: Occupancy and/or Utilization Land without Required Permits

Pursuant to § 525-137 of the CODE, "No person hereafter shall erect, locate or alter any building or portion thereof, or begin or change the use of any land, without first obtaining a zoning permit therefor. All applications for zoning permits shall be in writing; shall be addressed to the Zoning Officer, except as otherwise provided for in this chapter; shall be signed by the owner of record of the land or by the holder of a bona fide contract for the purchase thereof; shall be made on such forms as may be prescribed and furnished by the Township; shall contain all information called for by such forms; and shall be accompanied by such plans as may be required, together with any additional information that may be requested by the Zoning Officer in order that it may be determined whether the proposed erection, location or alteration of a building or the proposed use or change of use of land will comply with the terms and provisions of this chapter, statute or order of the Board of Adjustment. Upon receipt of a zoning permit application, the Zoning Officer shall distribute same to the following members of the administration: the Township Administrator, the Township Director of Community and Economic Development, the Municipal Clerk, Tax Assessor, Tax Collector, and Secretary to the Planning.

Violation of § 525-21: Failure to Maintain Required Boundary Setbacks

§ 525-21 R-2 District area restrictions and regulations.

In all R-2 Residence Districts, the following area restrictions and regulations are established:

> D. There shall be two side yards on every lot, which yards shall be not less than 40 feet in aggregate width, and neither of which shall be less than 15 feet in width.
>
> E. There shall be a rear yard on every lot, which yard shall be not less than 25 feet in depth.

Violations and Penalties.

Pursuant to Section § 525-162 and § 525-163 of the CODE**:**

§ 525-162 Violations and penalties.

A. Unless otherwise determined within this chapter, any person that shall violate this chapter or do any act or thing therein prohibited, or refuse or fail to do any act or thing therein required to be done, or refuse or fail to comply with an order of the Zoning Officer or an order of the Zoning Board of Adjustment, shall, upon conviction thereof before a court of competent jurisdiction, forfeit and pay such fine not exceeding the sum of $1,250. The violator shall be provided a thirty-day period to cure or abate the violation. The court in its initial ruling or upon failure by the violator to cure or abate the violation within the thirty-day period may increase the penalty to the maximum of $2,000.

B. Any person who is convicted of violating an ordinance within one year of the date of a previous violation of the same ordinance and who was fined for the previous violation shall be sentenced by a court to an additional fine as a repeat offender. The additional fine imposed by the court upon a person for a repeated offense shall not be less than the minimum or exceed the maximum fine fixed for a violation of the ordinance but shall be calculated separately from the fine imposed for the violation of the ordinance.

C. Any natural person convicted of the violation of this chapter may, in the discretion of the court by which he was convicted, and in default of payment of any fine imposed therefor, be imprisoned in the county jail for any term not exceeding 90 days or be required to perform community service for a period not exceeding 90 days.

§ 525-163 Additional remedies.

In addition to the right, as hereinbefore authorized, of any person having knowledge of the violation of this chapter to initiate the prosecution of the person or persons believed to have committed such violation, the Zoning Officer of the Township and any and all other interested persons shall have the right to have recourse to any and all other remedies, whether by injunction, restraining order, mandamus or otherwise, which are or may hereafter be available by law.

Distribution of this Notice:

1. A copy of this notice will be sent by regular mail and certified mail to the property owner.

2. A copy of this notice will be sent by regular mail to the Construction Permit applicant.

3. Additional copies will be distributed via emails to the following Cinnaminson Township Officials:

    i. Administrator
    ii. Chief of Police
    iii. Township Solicitor
    iv. Technical Assistant, Construction Office

4. Additional copies will be distributed via regular and email to the New Jersey Cemetery Board in care of:

    Quin Archer
    Executive Director
    P.O. Box 45036
    Newark, New Jersey 07101
    Cemetery@dca.njoag.gov

Michael D. Minton
Director of Community Development
and Zoning Office

Officer Keith Upton
Code Enforcement Officer